FairExit
Challenge your severance offer.



YOUR SEVERANCE REPORT

Your offer, organized.

We read your letter and your contract, checked them against the rules, and checked the release you're being asked to sign. Use it to understand your offer and prepare. Only an attorney can tell you what applies to you.

DO-IT-YOURSELF · NOT LEGAL ADVICE · YOU'RE IN CONTROL

PREPARED FOR
Raymond Okafor-Lindqvist

ROLE
Senior Systems Engineer · 11 years 7 months of service

WHERE
Texas

DATE
October 31, 2026

TEST REPORT · fictional person and company · **For information only** — not legal advice · Yours to keep and use

General information, not legal advice. We've done our best to make this clear and accurate, but please check the details before you act. If anything feels unclear, a professional can help.

What's in *this report.*

Read it top to bottom, or jump to the page you need.

1 **Where you stand** — pages 4–8
Your offer checked against the rules, and what lines up.

2 **Why there's no minimum** — pages 9–10
What you're owed comes from what was promised.

3 **What's in your letter and contract** — pages 11–15
Clause by clause, with sources.

4 **Questions to prepare** — pages 16–18
Calm questions for HR, and this week's steps.

5 **Your next step** — pages 19–20
The three paths, side by side.

6 **Where every number comes from** — page 21
Every number and rule, with its official source.

7 **Talking to an attorney** — page 22
How to hand this report over, and your report ID.

How to read the colours: they always mean the same thing.

Green · lines up | Red · doesn't line up | Yellow · ask about it | Gray · good to know | Dark blue · your key number

US law sets no minimum severance, so this report checks **what your own documents promise** and **the rules that protect you when you sign a release**. It doesn't promise an amount or tell you what to do.

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The important stuff — *please read.*

Straight talk about what this pack is, what it isn't, and where the responsibility sits.

1 · This is a do-it-yourself report

This is designed for you to use **on your own**. It organizes your offer and prepares questions — it is **not** advice a attorney would give you after reviewing your full situation, and a attorney may see things very differently. Anything you choose to send or say, you're doing **on your own initiative**.

2 · Information, not legal advice

This pack gives you information to help you prepare. It does **not** make FairExit your attorney and does not create a attorney–client relationship. Nothing here is legal advice.

3 · We use AI — mistakes can happen

The explanations, notes, and draft questions are produced by **software and AI** from general rules and the details you gave us. **AI can be wrong, details can be misread, and laws change**. It is up to you to read everything carefully and confirm every fact is correct before you rely on it.

4 · No guarantee — and the decisions are yours

Any general information here can be wrong, and outcomes depend on your paperwork and your situation. **FairExit accepts no responsibility for what you send, say, or decide based on this report** — those choices are entirely yours. Deadlines to act can be short; confirm them with a attorney promptly.

5 · Only a attorney can give you the exact answer

We provide clarity in an organized way. **Only a licensed employment attorney** can confirm what you're truly owed, review your real contract, and advise you. If anything feels urgent or serious — especially before you sign anything — speak to a attorney. The first call is often free.

6 · Once a attorney takes your case, follow them

Everything here is **general and organizational**. If you retain a attorney, their advice **supersedes** anything in this report — follow your attorney, not this document. **Do not rely on this report once you're working with a attorney**.

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SECTION 1 OF 5 · WHERE YOU STAND

1

Where you stand

Your offer, checked against the rules. What they offered, what the rules say, and what lines up and what doesn't. If you only read one section, read this one.

IN THIS SECTION

Your offer at a glance

Things they don't always tell you

Did they do it right?

Your release check

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Your offer, *at a glance.*

The short version before the detail.

Your offer of $22,154 equals approximately 15 weeks of base salary. In the United States and Texas, there is no statutory minimum severance required by law. However, because you are over 40 and part of a group termination, federal law (the Older Workers Benefit Protection Act - OWBPA) requires specific legal disclosures, a minimum 45-day review period, and a 7-day revocation window. Your agreement currently specifies only 21 days to decide and lacks the mandatory demographic disclosures.

Employer	**Apex Global Technologies LLC**
Service	**11 years and 7 months of continuous employment with Apex Global Technologies.**
Age	**48**
Your pay	**$77,000**
They offered	**$22,154**
Unpaid PTO	**112 hours · ~$4,146**
Decide by	**21 days**

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Things they don't always *tell you.*

You have a date to sign by. Here's what the official rules say, so you can decide on your timeline, not theirs. Every point links to a government source.

WHAT PEOPLE OFTEN THINK	WHAT THE OFFICIAL RULES SAY
"Employers are required by federal law to pay two weeks of severance for every year worked."	Neither the Fair Labor Standards Act (FLSA) nor Texas state law requires employers to pay severance pay upon separation unless previously agreed in an employment contract.

WHAT PEOPLE OFTEN THINK	WHAT THE OFFICIAL RULES SAY
"Signing a severance release means you can never report illegal conduct to federal authorities."	Under federal law and SEC/EEOC regulations, confidentiality agreements cannot restrict you from speaking with or reporting violations to government regulatory agencies.

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Did they do it *right?*

Your letter, your contract and the rules, side by side. Green = it lines up. Red = it doesn't. Yellow = worth asking about.

3 LINE UP | 2 DON'T | 2 TO ASK ABOUT

WHAT WE CHECKED	YOUR SEPARATION AGREEMENT SAYS	YOUR OFFER LETTER OR EMPLOYMENT CONTRACT SAYS	THE RULES SAY	DOES IT LINE UP?
Money offered	$22,154 severance payment	At-will employment; discretionary severance policy	No federal or Texas statutory minimum severance	**Good to know** Severance in the US is primarily contractual and negotiated.
Release requirement	Requires full general release of all claims	Standard separation covenants	Release requires valid consideration above earned wages	**Lines up** The $22,154 represents valid consideration in exchange for releasing potential claims.
Review period (OWBPA)	21 calendar days to sign	N/A	29 U.S.C. § 626(f)(1)(F)(ii): 45 days required for group layoffs of workers 40+	**Doesn't line up** Because multiple employees were separated in this reduction, you are legally entitled to 45 days, not 21 days.
Revocation period	7 calendar days following execution	N/A	29 U.S.C. § 626(f)(1)(G): Mandatory 7-day revocation period cannot be waived	**Lines up** The 7-day revocation clause complies with federal statutory requirements.
Demographic disclosure	No list of affected ages/titles attached	N/A	29 U.S.C. § 626(f)(1)(H): Mandatory job titles and ages of selected and non-selected employees	**Doesn't line up** Without the required OWBPA informational attachment, any age discrimination release is legally invalid.
Accrued PTO payout	All accrued, unused vacation paid on final payroll	PTO accrual policy per handbook	Texas Labor Code § 61.014: Paid according to written company policy	**Lines up** The employer has committed to paying earned vacation time in accordance with policy.
Health coverage (COBRA)	COBRA continuation election notice sent separately	N/A	Federal COBRA: Up to 18 months continuation at employee expense	**Ask about this** Company has not offered to subsidize COBRA premiums during your severance period.

Checked against Texas's rules and court decisions. Sources are on the Sources page.

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Your release *check.*

US law sets no minimum severance, so the report checks the release you're being asked to sign against the rules that protect you.

YOUR KEY NUMBER

45 days

The time federal rules give you to consider a release in a group layoff at your age. You were given 21 days, and no list of who was selected.

45 days to consider (group layoff)
You were given 21 days. Under the Older Workers Benefit Protection Act (OWBPA), group reductions in force involving employees 40 years of age or older require at least 45 days to consider.

7 days to revoke
Your agreement correctly gives you 7 days after signing to revoke your acceptance in writing. This period cannot be shortened or waived.

Decisional unit disclosure (ages and titles)
The agreement does not include Exhibit A listing the job titles and ages of all employees in your decisional unit who were selected and not selected for layoff.

Advice to consult an attorney
The agreement contains explicit written language advising you to consult with an independent attorney prior to executing the agreement.

Valid consideration provided
The severance payment of $22,154 is in addition to anything of value to which you are already entitled (such as earned wages or accrued PTO).

Preservation of EEOC filing rights
The release preserves your legal right to file an administrative charge with or participate in an investigation by the EEOC or Texas Workforce Commission.

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2

Why there's no minimum

There is no statutory severance in the US. What you're owed comes from what was promised in your agreement or severance policy.

IN THIS SECTION

The rules that govern US severance

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What you're owed comes from *what was promised.*

Here is how US severance works in practice.

1 · At-will employment and no statutory severance

Under federal law and Texas law, employment is generally "at-will." Neither state nor federal statutes guarantee severance pay upon termination unless you have a contractual entitlement or severance plan.

2 · What protects you: OWBPA, WARN, and earned wages

While severance itself is discretionary, the **release agreement** they ask you to sign must comply with federal OWBPA standards (45-day review in group layoffs, 7-day revocation) and state wage-payment deadlines.

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3

What's in your letter and contract

Clause by clause: what your documents say, what the rules say, and what it could mean for you. Each point shows where it comes from.

IN THIS SECTION

General Release and Waiver of Claims (Section 3)

Non-Disparagement and Confidentiality (Section 5)

Post-Employment Restrictive Covenants (Section 7)

Return of Company Property & Intellectual Property

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The terms to understand and the *questions to ask.*

For each: what your documents say, what the rules say, and what it means.

ASK ABOUT IT

1. General Release and Waiver of Claims (Section 3)

YOUR DOCUMENTS SAY

"Employee releases the Company from any and all claims, including Title VII of the Civil Rights Act, the ADEA, the ADA, and the Texas Labor Code."

WHAT THE RULES SAY

You are waiving all legal claims regarding your termination. Because the agreement fails to provide 45 days and demographic disclosures under OWBPA, the release of ADEA age discrimination claims may be legally invalid.

Why it matters: You are waiving all legal claims regarding your termination. Because the agreement fails to provide 45 days and demographic disclosures under OWBPA, the release of ADEA age discrimination claims may be legally invalid.

→ **Will the company issue an amended separation agreement extending the consideration period to 45 days and attaching the required OWBPA Exhibit A demographic list?**

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The terms to understand and the *questions to ask.*

For each: what your documents say, what the rules say, and what it means.

MAY NOT HOLD · A LAWYER CONFIRMS

2. Non-Disparagement and Confidentiality (Section 5)

YOUR DOCUMENTS SAY

"Employee agrees not to make any disparaging or defamatory statements regarding the Company, its executives, or its products in any public or private forum."

WHAT THE RULES SAY

Under recent NLRB rulings (McLaren Macomb), overly broad severance confidentiality and non-disparagement provisions that interfere with Section 7 rights are unlawful. Furthermore, this provision should be strictly mutual.

Why it matters: Under recent NLRB rulings (McLaren Macomb), overly broad severance confidentiality and non-disparagement provisions that interfere with Section 7 rights are unlawful. Furthermore, this provision should be strictly mutual.

→ **Can the company agree to make the non-disparagement covenant mutual so that company managers are equally barred from making disparaging remarks about me?**

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The terms to understand and the *questions to ask.*

For each: what your documents say, what the rules say, and what it means.

ASK ABOUT IT

3. Post-Employment Restrictive Covenants (Section 7)

YOUR DOCUMENTS SAY

"Employee shall not directly or indirectly provide cloud engineering services to any competitor in the State of Texas for a period of one (1) year."

WHAT THE RULES SAY

Texas Business and Commerce Code § 15.50 requires non-compete agreements to be reasonable in scope, geography, and duration. An industry-wide statewide ban on technical contributors is often considered overly broad by Texas courts.

Why it matters: Texas Business and Commerce Code § 15.50 requires non-compete agreements to be reasonable in scope, geography, and duration. An industry-wide statewide ban on technical contributors is often considered overly broad by Texas courts.

→ **Will the company agree to release me from the non-competition restriction or narrow it strictly to direct solicitation of my assigned client accounts?**

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The terms to understand and the *questions to ask.*

For each: what your documents say, what the rules say, and what it means.

LINES UP

4. Return of Company Property & Intellectual Property

YOUR DOCUMENTS SAY

"Employee confirms return of all company laptops, credentials, software licenses, customer records, and confidential technical documentation."

WHAT THE RULES SAY

Standard operational provision ensuring proprietary materials and hardware are returned upon separation.

Why it matters: Standard operational provision ensuring proprietary materials and hardware are returned upon separation.

→ **Can HR provide a written receipt acknowledging the physical return and audit of all company hardware and access cards upon handover?**

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4

Questions to prepare

Calm questions you can send to HR, and practical steps for this week. You decide what to use and when.

IN THIS SECTION

Questions you might choose to ask

Take your time, and keep it simple

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Questions you might *choose to ask.*

Neutral questions you might choose to send. You decide what to send. This is not a demand letter or legal advice.

To: **Patricia Vance** · Subject: **A few questions about my separation offer**

Hi Denise,

Thank you for the letter. Before I decide, I have a few questions.

- Will the company correct the consideration period from 21 days to the federally required 45-day window under OWBPA?
- Can HR provide the OWBPA Exhibit A disclosure document listing the job classifications and ages of all employees selected and not selected in this reduction?
- Is the company willing to provide three months of subsidized COBRA health insurance coverage as part of the separation package?
- Will the company agree to mutual non-disparagement and provide an agreed neutral reference letter for prospective employers?

Thank you,
Raymond Okafor-Lindqvist

Why this works: it asks clear questions instead of making claims, and asks for time to understand the offer.

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Take your time — *and keep it simple.*

Two things that help: not rushing, and keeping your questions clear.

You usually don't have to decide on the spot

Your letter gives a deadline for the extra $5,000. Asking to take the offer home to review it is a normal, complete answer. The $22,154 doesn't depend on signing.

This week — the practical stuff

- **Apply for unemployment** within 4 weeks of your last day (state portal).
- **Write down every date:** sign-by 21 days, benefits Nov 23, 2-year claim limit.
- **Gather documents:** letter, contract, promotion note, bonus plan, pay stubs.
- **Check your final pay** for vacation pay.
- **Keep this report** to hand to a attorney if you choose.

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SECTION 5 OF 5 · YOUR NEXT STEP

5

Your next step

The three paths side by side, where every number in this report comes from, and how to hand it to a attorney if you want one.

IN THIS SECTION

You don't have to sign today

Where every number comes from

Talking to a attorney

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You don't have to *sign today.*

Here's how the three paths compare.

OPTION 1

Sign as-is

Accept the offer and move on.

You get $22,154. It gives up the contract question.

OPTION 2

Ask your questions

Use Section 4 to raise it yourself.

You run it yourself, using Section 4.

OPTION 3

Talk to a attorney

They can tell you what applies to you.

First call often free. The contract question needs a attorney to read it.

Honest note: this report helps you ask the right questions. The contract question in Section 3 is one a attorney needs to read your contract to answer.

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Where every number *comes from.*

Texas statute text checked on e-Laws and government guides.

IN YOUR REPORT	HOW WE GOT IT	SOURCE
Texas Workforce Commission	Final pay and severance benefits (Labor Code 61.014: 6 days after discharge, next payday after quitting)	**US-TX-S1** https://efte.twc.texas.gov/final_pay_severance_benefits.html
Texas Legislature Online (statute text)	Labor Code chapter 61, Payday Law, section 61.001(7) wages include vacation only under a written agreement or policy	**US-TX-S2** https://statutes.capitol.texas.gov/Docs/LA/htm/LA.61.htm
Texas Workforce Commission and Labor Code 207.049	How money from other sources can affect your benefits (severance and wages in lieu of notice)	**US-TX-S3** https://www.twc.texas.gov/programs/unemployment-benefits/how-money-other-sources-can-affect-your-benefits
Texas Workforce Commission	WARN notices (federal WARN only; no Texas statute)	**US-TX-S4** https://www.twc.texas.gov/businesses/worker-adjustment-and-retraining-notification-warn-notices
Texas Legislature Online (statute text)	Labor Code chapter 21, sections 21.002(8) (15 employees) and 21.101 (age 40+)	**US-TX-S5** https://statutes.capitol.texas.gov/Docs/LA/htm/LA.21.htm
Texas Legislature Online (statute text)	Business and Commerce Code 15.50, enforceability of covenants not to compete	**US-TX-S6** https://statutes.capitol.texas.gov/Docs/BC/htm/BC.15.htm
Texas Workforce Commission	Severance pay: owed only under a written policy; distinction from wages in lieu of notice	**US-TX-S7** https://efte.twc.texas.gov/severance_pay.html
U.S. Department of Labor	WARN Act (Worker Adjustment and Retraining Notification)	**US-FED-S1** https://www.dol.gov/agencies/eta/layoffs/warn
U.S. Equal Employment Opportunity Commission	Q&A: Understanding waivers of discrimination claims in employee severance agreements (OWBPA, age 40+)	**US-FED-S2** https://www.eeoc.gov/laws/guidance/qa-understanding-waivers-discrimination-claims-employee-severance-agreements
29 U.S.C. § 626(f)	Older Workers Benefit Protection Act: knowing and voluntary waiver (21/45 days to consider, 7 days to revoke, advice to consult an attorney, ages and job titles for group programs)	**US-FED-S3** https://uscode.house.gov/view.xhtml?req=granuleid:USC-prelim-title29-section626

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IF YOU'D RATHER NOT DO IT ALONE

One step, and a attorney *takes it from here.*

If they push back, go quiet, or it feels like too much, you can hand this report to a attorney.

Show them this page.

Your report ID connects this report to FairExit, so they can see what you've already done. Connecting is free; you choose whether to go further.

Report ID **RPT-2026-US-8820**

Scan to connect report

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Built on the details you confirmed on October 31, 2026.

Rules as of October 25, 2026.

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